

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3764

By: Turner

COMMITTEE SUBSTITUTE

An Act relating to crimes and punishments; creating the Foreign Terrorist Organization Felony Enhancement Act; defining term; providing for enhancement of felony sentences under certain circumstances; making enhanced punishment applicable to mandatory minimum sentences; prohibiting the suspension or deferral of sentences; directing courts to make certain determination; allowing courts to take judicial notice of certain designations; providing burden of proof requirements; deeming association, membership, or knowing support of certain organizations as an aggravating factor; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1269 of Title 21, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Foreign Terrorist Organization Felony Enhancement Act".

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 1269.1 of Title 21, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in the Foreign Terrorist Organization Felony Enhancement
5 Act, the term "designated foreign terrorist organization" means any
6 organization designated by the United States Department of State,
7 pursuant to Section 219 of the Immigration and Nationality Act,
8 Section 1189 of Title 8 of the United States Code.

9 SECTION 3. NEW LAW A new section of law to be codified

10 in the Oklahoma Statutes as Section 1269.2 of Title 21, unless there
11 is created a duplication in numbering, reads as follows:

12 A. If a person is convicted of a felony offense under the laws
13 of this state, and it is proven that, at the time the felony offense
14 was committed, the person was a member of, acting on behalf of, or
15 knowingly supporting a designated foreign terrorist organization,
16 the sentence shall be enhanced as follows:

17 1. The term of imprisonment imposed shall be not less than
18 twice the maximum sentence that could have been imposed for a first
19 conviction for the underlying felony offense; and

20 2. Any fine imposed shall be not less than twice the maximum
21 fine that could have been imposed for a first conviction for the
22 underlying felony offense.

23 B. The enhanced term of imprisonment and fine provided for in
24 subsection A of this section shall apply in addition to, and not in

1 place of, any mandatory minimum sentence applicable to the
2 underlying offense.

3 C. The enhanced term of imprisonment provided for in subsection
4 A of this section shall not be subject to statutory provisions for
5 suspension or deferral of the sentence.

6 SECTION 4. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1269.3 of Title 21, unless there
8 is created a duplication in numbering, reads as follows:

9 Before a penalty enhancement may be imposed under the provisions
10 of the Foreign Terrorist Organization Felony Enhancement Act, the
11 court shall determine that:

12 1. The organization with which the defendant is alleged to be
13 affiliated was, at the time the criminal offense was committed,
14 designated as a Foreign Terrorist Organization by the United States
15 Secretary of State pursuant to Section 219 of the Immigration and
16 Nationality Act, Section 1189 of Title 8 of the United States Code;
17 and

18 2. Such designation was active and in full force and effect at
19 the time of the offense.

20 The court may take judicial notice of the designation as
21 published in the Federal Register or as maintained by the United
22 States Department of State.
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SECTION 5. NEW LAW

A new section of law to be codified in the Oklahoma Statutes as Section 1269.4 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. To apply the penalty enhancement under the Foreign Terrorist Organization Felony Enhancement Act, the state shall prove that the defendant:

1. Committed the underlying felony offense; and

2. At the time of the offense:

a. was a member of,

b. was acting at the direction of,

c. knowingly provided material support to, or

d. knowingly associated with in furtherance of the objectives of,

a designated foreign terrorist organization.

B. The trier of fact shall make a specific finding on the record regarding the affiliation of the defendant with a designated foreign terrorist organization.

C. Association with, membership in, or knowing support of a designated foreign terrorist organization at the time a criminal offense is committed shall be deemed an aggravating factor for purposes of:

1. Determining eligibility for bail and the appropriateness of conditions of release;

1 2. Determining the length and severity of any sentence imposed
2 within statutory limits;

3 3. Determining whether probation may be granted;

4 4. Determining eligibility for parole or early release; and

5 5. Determining eligibility for sentence modification or
6 commutation.

7 Aggravating factors shall be considered in addition to any other
8 statutory aggravating circumstance under state law.

9 SECTION 6. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

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